

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- x
NESLON CROSS,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL KOLODY (Shield no. 477 of the 105th
Precinct), POLICE OFFICER PATRICK WERBER
(Shield no. 6871 of the 105th Precinct), JOHN DOES

U.S. DISTRICT COURT E.D.N.Y.
* SEP 20 2005
BROOKLYN OFFICE
X

Jury Trial Demanded

DEARIE, J.

POHORELSKY, M.J.

----- x
PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The case arises from an August 2, 2005 incident in which members of the New York City Police Department ("NYPD") subjected plaintiff to excessive force, assault and battery, malicious prosecution, and fabricated evidence. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorneys' fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claims of assault and battery and malicious prosecution. With respect to these state law claims, a notice of claim was duly filed on the City of New York within 90 days of the incident in question, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's state law claims. Moreover, this action was filed within one year and 90 days of the incident in question.

4. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Eastern District of New York. Moreover, the incident in question took place in this district.

PARTIES

5. Plaintiff is a resident of the State of New York, County of Kings.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Police Officer Michael Kolody is a member of the NYPD who violated plaintiff's rights as described herein. Kolody is sued in his individual and official capacity.

8. Police Officer Patrick Werber is a member of the NYPD who violated plaintiff's rights as described herein. Werber is sued in his individual and official capacity.

9. John Doe 1-2 are members of the NYPD who acted in concert with defendants Kolody and Werber in violating plaintiff's rights. John Does 1-2 are sued in their individual and official capacities.

STATEMENT OF FACTS

10. On August 2, 2005, at approximately 7:30 p.m., in the hallway of a building located at 99-04, 212th Street, Queens Village, New York, Police Officer Michael Kolody, Police Officer Patrick Werber, and John Does 1-2 arrested plaintiff.

11. In the course of arresting plaintiff, the officers, acting in concert, subjected plaintiff to excessive force and assault and battery. The officers, among other things, punched plaintiff in the jaw and chest, slammed plaintiff's head against a wall, sprayed plaintiff with mace, and after plaintiff fell to the ground, kicked plaintiff several times in his body and head. The officers' use of force was unnecessary as plaintiff did not fight with the officers or resist arrest at any time.

12. After arresting plaintiff, the officers took plaintiff to the 105th Precinct for arrest processing. At the precinct, plaintiff was treated by paramedics. The paramedics then took plaintiff, via ambulance, to Queens Hospital Center. Plaintiff was discharged from Queens Hospital Center on August 4, 2005 at 1:32 p.m.

13. To cover up their use of excessive force, the officers maliciously and falsely charged plaintiff with resisting arrest. Plaintiff, however, did not resist arrest at any time.

14. Plaintiff is presently being maliciously prosecuted by the officers for resisting arrest. The docket number for the criminal case is 2005QN036895.

15. As a result of the aforesaid police action, plaintiff suffered personal and physical injuries, pain and suffering, emotional distress, fear, embarrassment, humiliation, loss of liberty, shock, discomfort, and damage to his reputation.

**FEDERAL AND STATE LAW CLAIMS
AGAINST POLICE OFFICER MICHAEL
KOLODY, POLICE OFFICER PATRICK
WERBER, AND JOHN DOES 1-2**

16. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-15 as if fully set forth herein.

17. The conduct of Police Officer Michael Kolody, Police Officer Patrick Werber, and John Does 1-2, as described herein, amounted to excessive force, assault and battery, malicious prosecution, and fabrication of evidence. This conduct violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

**FEDERAL AND STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

18. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-17 as if fully set forth herein.

19. The City of New York directly caused the constitutional violations suffered by plaintiff.

20. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the NYPD and the Civilian Complaint Review Board, and from the NYPD's own observations, that the individual defendants are unfit, ill-tempered police officers who have the propensity to commit the acts alleged herein.

21. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline,

and monitor the officers and improperly utilized and retained them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

22. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

23. Moreover, under state law, the City of New York is vicariously liable for the assault and battery and malicious prosecution of plaintiff.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

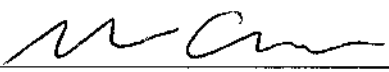
- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: September 20, 2005
Brooklyn, New York

CARDINALE & MARINELLI
26 Court Street, Suite 1815
Brooklyn, New York 11242
(718) 624-9391

By:


RICHARD J. CARDINALE (RC-8507)